

Ramvilash @ Chhottan @ Chhottan Kori vs State Of U.P. And 3 Others on 17 November, 2022

HIGH COURT OF JUDICATURE AT ALLAHABAD

A.F.R.

Court No. - 92

Case:-CRIMINAL MISC. BAIL APPLICATION No.-51543 of 2022

Applicant :- Ramvilash @ Chhottan @ Chhottan Kori

Opposite Party :- State Of U.P. And 3 Others

Counsel for Applicant :- Ramesh Prasad

Counsel for Opposite Party :- G.A.

Hon'ble Gajendra Kumar,J.

1. Heard learned counsel for applicant, learned A.G.A. for State and learned counsel for the State-respondents and perused the material on record.
2. Instant application for bail has been filed by applicant-Ramvilash @ Chhottan @ Chhottan Kori supported by an affidavit of the prosecutor seeking his enlargement on bail in Case Crime No.65 of 2020 under Sections 363, 366, 504, 506 I.P.C. and Section 7/8 POCSO Act, Police Station- Kotwali Dehat, District-Banda, during the pendency of trial.
3. Record shows that in respect of an incident, which is alleged to have occurred on 09.03.2020, an F.I.R. dated 20.03.2020 was lodged by first informant Premchand (father of prosecutrix) and was registered as Case Crime No.65 of 2020 under 363, 366, 504, 506 I.P.C. and Section 7/8 POCSO Act, Police Station- Kotwali Dehat, District-Banda.
4. In brief, as per prosecution story as unfolded in the F.I.R., it is alleged that maternal uncle of the informant i.e. accused-applicant (Ramvilash @ Chhottan @ Chhottan Kori) enticed away the minor daughter of the informant, aged about 16 years on 09.03.2020 and she (prosecutrix) had taken

away some jewellery, money etc. along with her.

5. After registration of the aforesaid F.I.R., Investigating Officer proceeded with statutory investigation of afore-mentioned case crime number in terms of Chapter XII Cr.P.C. Thereafter, statement of prosecutrix was also recorded under Section 161 Cr.P.C. by Investigating Officer wherein she has not supported the prosecution story as unfolded in the F.I.R. To the contrary, prosecutrix has stated that she herself accompanied the applicant out of her own free will. She has also stated that she has solemnized marriage with the applicant. As a consequence of above, they started living together as husband and wife. Thereafter, prosecutrix was requested for her medical examination, which was refused by her. Ultimately, the statement of prosecutrix was recorded under Section 164 Cr.P.C. wherein she re-joined her earlier statement under Section 161 Cr.P.C. Investigating Officer during the course of investigation, also recovered the mark-sheet/certificate pertaining to the High School Examination of prosecutrix wherein her date of birth is recorded as 11.07.2004, copy of the same has been annexed as Annexure 4 to the bail application.

6. Aggrieved with the above, applicant and other co-accused persons have filed a petition bearing Criminal Misc. Writ Petition No.52 of 2021 seeking stay in the aforesaid FIR and, thereafter, considering the facts of the case, a Division Bench of this Court vide order dated 11.01.2021 stayed the proceedings of the aforesaid case crime number against the applicant as well as other two accused persons, which was also extended on 12.02.2021 till 01.04.2021 and is still pending now.

7. After recording the statement of the prosecutorix under Section 161 Cr.P.C., on 13.09.2022, an application was given by the police before the court of Juvenile Justice Board, Banda and on that application on 14.09.2020, concerned Juvenile Court passed the order mentioning therein that he has no jurisdiction to the same as prosecutorix/victim is major and aged about 18 years and two months. Thereafter, victim has moved an application before the concerned police station stating therein that she did not want to go with her parents and wants to go with her mother-in-law for living their happily life. On 14.09.2020, another application has also been moved by the father of the victim before the concerned police station wherein, he has specifically stated that she (prosecutorix) is major and he has no concern with her and denied for keeping them, copies of the same have been annexed as Annexure-7 to the bail application.

8. The occurrence occurred on 09.03.2020. As such, prosecutrix was aged about 15 years and 07 months and 28 days on the date of occurrence. On the basis of above and other material collected by Investigating Officer during course of investigation, he opined to submit a charge sheet. Accordingly, he submitted charge sheet, whereby applicant has been charge sheeted under Sections under Section 363 and 366 I.P.C. and Section 7/8 POCSO Act.

9. Learned counsel for applicant submits that though the applicant is a named and charge sheeted accused but he is innocent. He has then invited the attention of the Court to the statements of prosecutrix recorded under Section 161 and 164 Cr.P.C. wherein, she has not supported the prosecution story as unfolded in the F.I.R. He therefore submits that prosecutrix had gone and accompanied the applicant out of her own free will, as such no offence as has been alleged in the aforesaid case crime number can be said to have been committed by the applicant. Prosecutrix and

applicant were in love with each other. Prosecutrix has subsequently solemnized marriage with the applicant on 04.08.2022 under section 5/7 of Hindu Marriage Act, 1955. It is lastly contended that applicant is a man of clean antecedents inasmuch as he has no criminal history to his credit except present one. Applicant is in jail since 15.09.2022. In case the applicant is enlarged on bail, he shall not misuse the liberty of bail and shall co-operate with trial. Charge-sheet having been submitted against applicant, therefore, the evidence sought to be relied upon by the prosecution against applicant, stands crystallised. As such, custodial arrest of applicant is not absolutely necessary during course of trial. On the cumulative strength of above, he submits that applicant is liable to be enlarged on bail

10. Per contra, learned counsel for the opposite party has vehemently opposed the bail but could not dispute the aforesaid facts on record.

11. The ingredients of offence under Section 363 IPC are not made out against the applicant as per the judgement of Apex Court in the case of S. Varadarajan Vs. State of Madras, 1965 AIR (SC) 942, since the victim herself left her house and went to the applicant. She was not enticed away by him.

12. Having heard the learned counsel for applicant, learned counsel for the opposite party, upon consideration of evidence on record, considering the aforesaid case-law, accusations made as well as complicity of applicant coupled with the fact that there is no medical evidence to support the prosecution of applicant, prosecutrix in her statements recorded under Section 161 and 164 Cr.P.C. having not supported the prosecution case, prosecutrix and applicant having solemnized marriage and are living together as husband & wife and without expressing any opinion on the merits of the case, applicant has made out a case for bail.

10. Accordingly, present bail application for bail is allowed.

13. Let the applicant-Ramvilash @ Chhottan @ Chhottan Kori involved in aforesaid case crime number be released on bail on furnishing a personal bond and two sureties each in the like amount to the satisfaction of the court concerned with the following conditions which are being imposed in the interest of justice:-

(i) Applicant will not tamper with prosecution evidence.

(ii) Applicant will abide the orders of court, will attend the court on every date and will not delay the disposal of trial in any manner whatsoever.

(iii) Applicant will not indulge in any unlawful activities.

(iv) Applicant will not misuse the liberty of bail in any manner whatsoever.

The identity, status and residential proof of sureties will be verified by court concerned and in case of breach of any of the conditions mentioned above, court concerned will be at liberty to cancel the bail of applicant and send him to prison.

Order Date :- 17.11.2022 Ashutosh [Gajendra Kumar, J.]